

Court No. - 21

Case :- WRIT - C No. - 3062 of 2023

Petitioner :- Pankaj Singh

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Satya Prakash Singh

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Counsel for the respondent Electricity Department seeks time to obtain instructions.

Put up as fresh on 14.02.2023 showing name of Sri Ugrasen Kumar Pandey as counsel for the respondent Electricity Department.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 30.1.2023

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Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Satya Prakash Singh

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh, Ugrasen Kumar Pandey

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner and learned Standing Counsel. Shri Ugrasen Kumar Pandey appears for Electricity Department.

Present writ petition has been preferred for quashing the impugned demand notice dated 29.12.2022 issued by respondent no.3 requiring the petitioner to pay an amount of Rs.4,59,856/- as against the electricity connection no.4628583000 of the petitioner.

Learned counsel for the petitioner has submitted that the petitioner is having approved electricity load of 4 KW. The liability through impugned demand notice has been fastened on the petitioner without provisional and final assessment. The entire impugned demand is per se unsustainable in view of the provisions contained under the Electricity Act, 2003 (in short "the Act") and Electricity Supply Code, 2005 (in short "the Code").

Learned counsel for the Electricity Department has placed the order dated 11.8.2022 passed by the Executive Engineer showing therein the quantified amount but nowhere it gives any detail, when the provisional and final assessment took place.

The Court has proceeded to examine the record in question and find that in the absence of final assessment, the impugned demand notice is unsustainable.

Confronted with this, learned counsel for the Electricity Department fairly states that in case the matter is relegated to the authority concerned, then definitely the authority would proceed to decide the claim of the petitioner as per the final assessment in view of the relevant provisions of the Act and the Code and only thereafter the demand notice shall be issued.

In the facts and circumstances of the case, we find that the respondents have utterly failed to adhere the procedure prescribed

under the Act and the Code. As such the impugned demand notice cannot sustain and the same is accordingly set aside. The matter is relegated to authority concerned to proceed strictly in accordance with law and in view of the observations made herein above.

The writ petition stands **disposed of** accordingly.

Order Date :- 14.2.2023

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